

THE NASH GROUP, LLC

Building Community. Restoring Hope.™

COUNCIL BRIEFING · DATA CENTERS AND EMERGING INDUSTRIES

Before the First Hearing

Questions for a council facing its first data center application.

The demand is real. Data centers used about 4.4% of U.S. electricity in 2023 and are expected to use about 6.7 to 12% by 2028. (U.S. Department of Energy, December 20, 2024, on the Lawrence Berkeley National Laboratory report.)

The decision is local. \$18 billion of data center projects were blocked and another \$46 billion delayed over two years in the face of local opposition, and most permitting decisions are made by local authorities. The concerns raised most often: higher utility bills, water use, noise, property values and green space. (Data Center Watch.)

SEVEN QUESTIONS TO ASK FIRST

1. **Does our code define this use?** If it is permitted by right, or close enough that nobody has a definition to argue with, the first application sets the rule for every one after it.
2. **What does it actually do, here?** Ask for plain answers on each concern residents raise most: utility bills, water, noise, property values and green space. If no one in the room can answer, that is the finding.
3. **Who explains it, and will people believe them?** Residents rarely believe the applicant, and once trust in the city is gone, the city cannot be the one to explain anything.
4. **Who speaks for the town?** An open comment period and an online survey are self selected. They cannot tell you what the quiet majority thinks. A representative survey can.
5. **What can this process decide, and what can it not?** Publish it before the first meeting, or residents will arrive believing the engagement can undo a decision that has already been made.
6. **Will the record hold up?** The findings should be written so they drop straight into a code update or a zoning text amendment, with the method attached.
7. **Are the council and staff ready for the room?** Map the questions before the hearing: which have real answers, where the record is thin, and how to run a meeting a hostile room still recognizes as fair.

How we help. The Nash Group is the third party in the middle. We do not advocate for or against a project, our fee never depends on the outcome, and we never work both sides of the same project. Request a briefing: nashdg.com/emerging-industry-engagement, tnash@thenashdevelopmentgroup.com, (816) 213-4461.